



File No.: EXP202402693

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on January 2, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Access against BANKINTER CONSUMER FINANCE E.F.C., S.A. (hereinafter, the respondent) without receiving the legally established response to their request. The complainant states that, following some contractual discrepancies and after more than a year of paying an incorrect amount, on June 26, 2021, they requested access from the respondent to the recordings in which the entity informed them of the reduction of the interest applied to their card payment, a recording that was provided to them, and despite stating that the payment would decrease, this did not happen, as the respondent had previously made a reduction in the interest that was not communicated to the complainant. The complainant states that, as the contractual discrepancies continued, they submitted numerous complaints without receiving a response, leading them to stop paying the bills and start receiving calls from a collection agency with threats, with their family members also receiving calls informing them of the complainant's debt.

On February 3, 2023, they reiterated their request for access to the recordings related to the contractual conditions of the card activation.

The complainant states that, in a phone conversation, the respondent indicated that they could not provide the recordings, so on June 7, 2023, they reiterated their request for access to the recordings related to the contractual conditions of the card, those from the collection agency in which they indicated that if the complainant did not pay, they would seize their assets, as well as the call from the respondent denying access to the requested information.

On June 12, 2023, they received a response indicating that they had already responded to their request in previous emails, but the complainant states that only the recording informing them of the change in conditions was provided, not the rest of the requested recordings. Therefore, on June 13, 2023, the respondent requested that the complainant specify the date and time of the other calls, and on that same date, the complainant indicated that they were requesting the recordings of the penultimate and antepenultimate conversations held with the entity, as well as, regarding the collection agency, a call received the previous month (May).

On June 15, 2023, the respondent indicated that it was not possible to locate the call "without providing any data for its location," again referring to responses from previous emails.

The complainant states that, on July 7, 2023, they received a call from the respondent indicating that they would provide all the requested information, but this did not happen, so on December 28, 2023, they reiterated their request and received a response on January 2, 2024, indicating that the requested documentation had already been sent and that regarding the calls, they must indicate which recordings they wanted.

On January 2, 2024, the complainant reiterated that the recordings are those indicated in previous communications. Along with the complaint, they provided a copy of the exchanged emails regarding this matter.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the complainant's claims to be deemed satisfied. Consequently, on April 2, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of

Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days, they could present any arguments they deemed appropriate, summarizing the following arguments:

“For these purposes, on June 13, 2023, BKCF requested the Complainant for the precise dates related to the requested recordings, so that it would be possible for the entity to identify and provide them, as had already been done with the call from May 2021. Attached is a screenshot of the communication sent from BKCF for this purpose:”

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, they can formulate any arguments they consider appropriate, summarizing the following arguments:

“Therefore, I request that since I do not have all the data for my defense in this situation after the threats from the collection companies and especially the last call from the company (...), where they indicate to me that if I record the conversation and I quote verbatim ‘we are going to come at you and sink you’ and that ‘propose the amount you think is appropriate and this will end,’ it be the Spanish Agency for the Protection of Data that takes the appropriate measures to do justice now.”

C/ Jorge Juan, 6

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3/7

that on my part I do not have all the recordings and data to be equitable in the presentation of the facts before a Judge.”

FIFTH: After examining the written submission presented by the claimant, it is forwarded to the respondent, so that, within a period of ten working days, they may formulate the allegations they deem appropriate, summarizing, in essence, the following allegations:

“Given that BKCF has already presented its pertinent allegations regarding the case and there are no new facts or new information or documentary evidence incorporated in the claimant's allegations, this party refers to its previous writings and to what was stated in the previous allegations.”

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure provided for in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, it was forwarded to the respondent for analysis, to respond to this Agency within one month, and to prove that they had provided the claimant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on April 2, 2024, for the purposes provided for in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers to correct any infringement of the GDPR, including “ordering the data controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject.

C/ Jorge Juan, 6

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5/7

interested party, and to express their reasons in case they do not intend to comply with such request.

The burden of proof regarding the fulfillment of the duty to respond to the request for the exercise of their rights made by the affected party lies with the responsible party.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the interested party has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.” Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the responsible party may request the affected party to specify the “data or processing activities to which the request refers.” The

right will be deemed granted if the responsible party provides remote access to the data, considering the request fulfilled (although the interested party may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the affected party chooses a means other than that offered which incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not adversely affect the rights and freedoms of others.

V

Conclusion

C/ Jorge Juan, 6

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6/7

We will begin by stating that this claim will only consider whether the requested right, the right of access before BANKINTER CONSUMER FINANCE E.F.C., S.A., has been addressed or not. The other issues raised by the claimant regarding the card in question or the calls made by the company (...), will not be taken into account in this resolution.

During the processing of this procedure, the entity being claimed has responded to this Agency, but does not prove that it has addressed the entirety of the requested access. Access has only been granted to one of the recordings, but not to the rest.

In this case, the entity being claimed must respond to the claimant, sending the required response to their request, indicating the reasons for denying access to the other telephone calls requested by the claimant.

Thus, it cannot be accepted that the response that corresponds to be given can be expressed merely as an administrative procedure, such as the formulation of allegations due to the present procedure, initiated precisely for not properly addressing the request in question, but rather a response must be given to the claimant themselves.

The aforementioned rules do not allow the request to be overlooked as if it had not been raised, leaving it without the response that those responsible must issue, even in the event that there are no data in the files or even in those cases where it does not meet the stipulated requirements, in which case the recipient of such request is also obliged to require the correction of the observed deficiencies or, if applicable, deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that no copy of the necessary communication that must be directed to the claimant informing them about the decision made regarding the exercise of rights request is attached, it is appropriate to uphold the claim that originated this procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge BANKINTER CONSUMER FINANCE E.F.C., S.A. with NIF A82650672, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right or denying it with justification indicating the reasons why it is not appropriate to address the request for access to the requested recordings, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of art. 83.6 of the GDPR, classified as very serious for the purposes of prescription in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with art. 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to BANKINTER CONSUMER FINANCE E.F.C., S.A. In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. 1381-090823

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